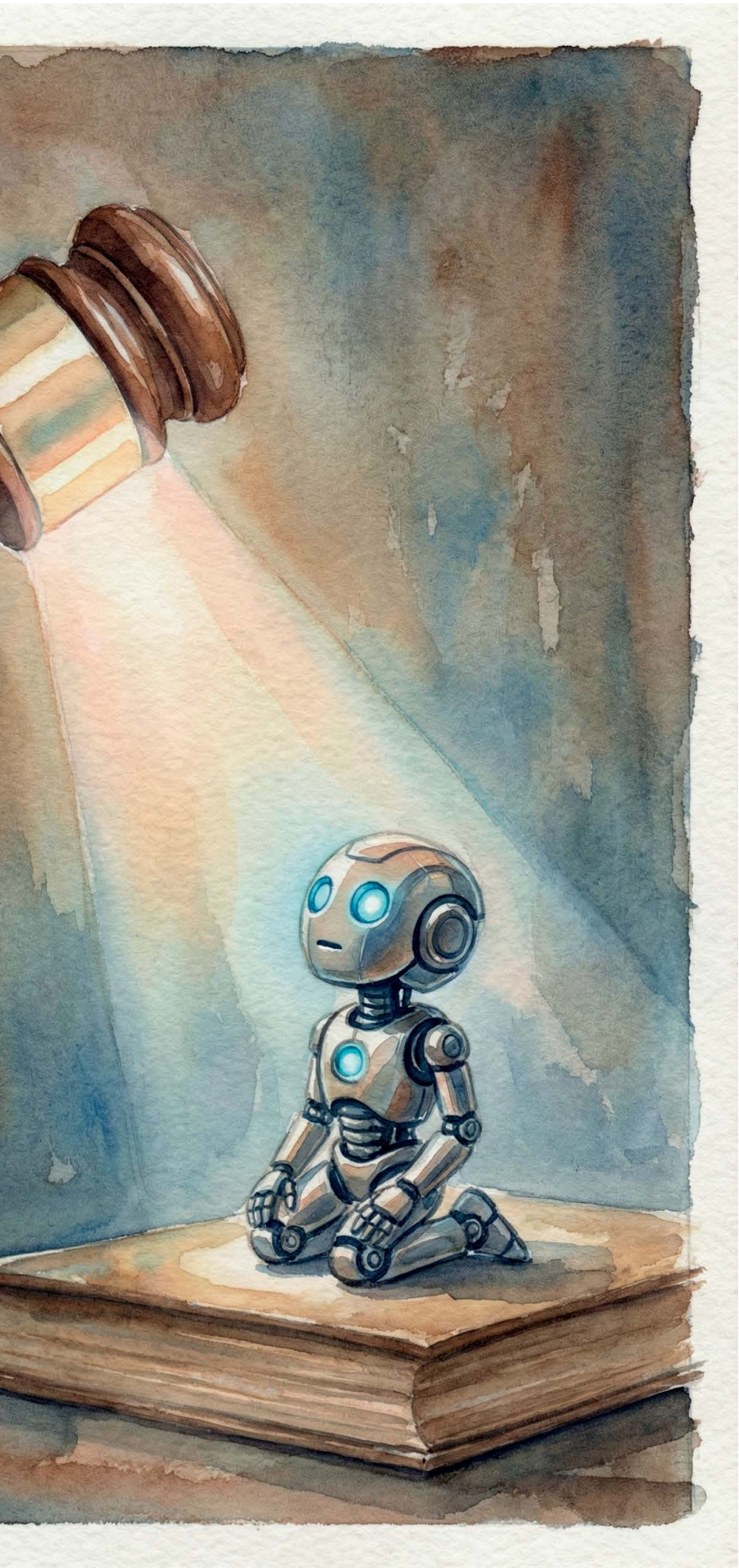


ers. While strong corrective action is required, the Grok incident highlights precisely the dangers of deregulation—forcing Grok to take down content is too little, too late—victims are already experiencing irreparable harm. What is needed instead is regulatory frameworks that mandate safety by design, rigorous pre-deployment testing and enforceable output controls before systems are released into public life.

India's Approach

India's trajectory fits squarely within this global pattern. Recently released guidelines from the Union ministry of electronics and information technology make it clear that the government does not intend to pursue top-down AI regulation in the near term. Governance will instead rely on voluntary commitments by companies, with risk assessment deferred to future committees. The overriding concern is avoiding anything that might 'stifle innovation'.

WHILE INDIA'S ULTIMATUM TO X OVER THE GROK AFFAIR **WAS NEEDED,** ITS FRAMING AS 'VULGARITY' IGNORED THE VITAL ISSUE OF CONSENT

However, here too, deepfakes are treated as an exception. On January 2, India's IT ministry issued a 72-hour ultimatum to X in the context of Grok's 'mass undressing', demanding an 'Action Taken Report', or risking the loss of safe-harbour protections. While compelling action was necessary, the government's framing of the issue as one of 'obscenity' or 'vulgarity' missed the core harm of image-based sexual abuse: the absence of consent. It should also serve as a stark reminder that leaving the market to self-regulate will continue to produce predictable harms.

Beyond this, India's approach dif-